

Bengal, Agra and Assam Civil Courts (Bihar Amendment) Act, 1960

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State of Bihar - Act

Bengal, Agra and Assam Civil Courts (Bihar Amendment) Act, 1960

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Bengal, Agra and Assam Civil Courts (Bihar Amendment) Act, 1960

Act 12 of 1960

Published on 1 June 1960

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Bengal, Agra and Assam Civil Courts (Bihar Amendment) Act, 1960

(Bihar Act

12 of 1960

)

[Governor's assent published in the Bihar Gazette, Extraordinary, of the 1st June, 1960.]

An Act to amend the Bengal, Agra and Assam Civil Courts Act, 1887, in its application to the State of Bihar.

Be it enacted by the Legislature of the State of Bihar in the Eleventh Year of the Republic of India as follows :-

1.

Short title, extent and commencement.

(1)

This Act may be called the Bengal, Agra and Assam Civil Courts (Bihar Amendment) Act, 1960.

(2)

It extends to the whole of the State of Bihar.

(3)

It shall come into force on such date as the State Government may, by notification in the Official Gazette, appoint.

2.

Amendment of Section 17 of Act XII of 1887.

- In sub-section (2) of Section 17 of the Bengal, Agra and Assam Civil Courts Act, 1887 (XII of 1887) (hereinafter referred to as the said Act), for the words and figures "in Section 623 or Section 649 of the Code of Civil Procedure" the words and figures "in Sections 36, 37 and 114 of, and Rule 1 of Order XLVII in Schedule I to the Code of Civil Procedure, 1908" shall be substituted.

3.

Amendment of Section 18 of Act XII of 1887.

- In Section 18 of the said Act, after the words "Code of Civil Procedure", the figures "1908" shall be inserted.

4.

Amendment of Section 19 of Act XII of 1887.

- In Section 19 of the said Act,-

(i)

in sub-section (1), for the words "one thousand", the words "two thousand" shall be substituted; and

(ii)

in sub-section (2), for the words "four thousand", the words "five thousand" shall be substituted.

5.

Amendment of Section 23 of Act XII of 1887.

- In sub-section (2) Section 23 of the said Act.-

(i)

in clause (d), for the words and figures "the Indian Succession Act, 1865, and the Probate and Administration Act, 1881", the words and figures "the Indian Succession Act, 1925" shall be substituted; and

(ii)

clause (e) shall be omitted.

6.

Amendment of Section 25 of Act XII of 1887.

- In Section 25 of the said Act, for the words "five hundred rupees", the words "seven hundred and fifty rupees" and for the words "two hundred and fifty rupees", the words "three hundred rupees" shall be substituted.

7.

Amendment of Section 38 of Act XII of 1887.

- In sub-section (4) of Section 38 of the said Act, for the words and figures "Section 25 of the Code of Civil Procedure", the words and figures "Section 24 of the Code of Civil Procedure, 1908" shall be substituted.

8.

Amendment of Section 39 of Act XII of 1887.

- In Section 39 of the said Act, after the words "Code of Civil Procedure", the figures "1908" shall be inserted.

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